DIFC Courts Order No. 1 of 2016 – The DIFC Courts Small Claims Tribunal – Additional Members of the SCT

APRIL 19, 2016 COURT ADMINISTRATIVE ORDERS

DIFC Courts (/glossary/difc-courts/) Order No. 1 of 2016

In respect of

The DIFC Courts Small Claims Tribunal (/glossary/tribunal/) – Additional Members of the SCT

I, Michael Hwang, Chief Justice (/glossary/chief-justice/) of the Dubai International Financial Centre Courts (/glossary/court/),

Having reviewed—

Dubai Law No. 9 of 2004 in respect of the establishment of the DIFC (/glossary/difc/);
Dubai Law No. 12 Of 2004 in respect of the Judicial Authority at the DIFC;
DIFC Law No. 10 of 2004 in respect of the DIFC Courts ("DIFC Courts Law");

DIFC Courts Order No. 2 of 2007 establishing the Small Claims Tribunal ("SCT");

DIFC Courts Order No. 1 of 2010 – Limits of Jurisdiction (/glossary/jurisdiction/);

DIFC Courts Order No. 1 of 2014 – Members of the SCT

Practice Direction No. 2 of 2010 – SCT Judge (/glossary/judge/); and

Part 53 of the Rules (/glossary/rules/) of the DIFC Courts

And Whereas –

(A) The DIFC Courts Law authorises the Chief Justice of the DIFC Courts, where he considers it appropriate, to set up and administer Tribunals of the DIFC Courts, and to authorise rules (/glossary/rules/) for their administration, which shall be set out in the Rules of Court (/glossary/court/) (Article 14(3)).

(B) The SCT was established pursuant to DIFC Courts Order No. 2 of 2007 issued by the then Chief Justice, Sir Anthony Evans.

(C) The Rules of the DIFC Courts (the "RDC") have been enacted by His Highness The Ruler (/glossary/ruler/) of Dubai pursuant to Article 31(1) of the Court Law (/glossary/court-law/) and contain at Part 53 the rules relating to the SCT; and

(D) The SCT is recognised as a mechanism for the prompt and cost-efficient hearing and determination of smaller claims within the jurisdiction (/glossary/jurisdiction/) of the DIFC Courts.

Now I hereby order and direct as follows –

- Ayesha Bin Kalban and Ms. Mahika Hart shall be appointed as members of the SCT. Where the RDC refers to a "SCT Judge" this shall include the Court of First Instance **Judges (/glossary/judge/)** and **Registrar (/glossary/registrar/)** and all other persons named in this Order and DIFC Courts Order 1 of 2010 (Limits of Jurisdiction) as members of the SCT.
- This Order shall take effect from the date of signature. Order No. 2 of 2007 shall remain in full force and effect save as amended by this Order. This Order shall be known as The DIFC Small Claims Tribunal – Additional Members of the SCT Order No. 1 of 2016.

Chief Justice Michael Hwang

Dated: 14 April 2016